

Kamlesh Chandra Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 September 2021 · Writ-C No. 8073 of 2021 · Writ-C No. 8073 of 2021
· **Writ dismissed; poultry farm not entitled to agricultural tariff.**

HEADNOTE

A poultry-farm consumer billed in LMV-2 (non-domestic) cannot obtain agricultural or non-commercial rates by importing the U.P. Revenue Code, 2006 definition of 'agriculture'. The U.P. Electricity Supply Code, 2005 classifies consumers into specified categories and has no general agricultural-supply category other than LMV-5 (private tube well/pumping set for irrigation) and HV-4 (lift irrigation). Poultry farming is otherwise a commercial activity. Writ dismissed.

FACTUAL SUMMARY

The petitioner held an LMV-2 (non-domestic) electricity connection for a poultry farm. He sought a writ directing the distribution licensee to recast his bills at agricultural or non-commercial rates, because the U.P. Revenue Code, 2006 includes poultry farming in 'agriculture'. The licensee maintained that the Supply Code 2005 has no general agricultural category beyond LMV-5 (irrigation tube well/pumping set) and HV-4 (lift irrigation), and that poultry farming is a commercial activity. The Division Bench heard the State and the licensee.

REUSABLE CONSTRUCTIONS

1. The definition of 'agriculture' in the U.P. Revenue Code, 2006 does not travel into the U.P. Electricity Supply Code, 2005 so as to confer agricultural or non-commercial electricity rates on a poultry farm. ¶ 1
2. The Supply Code 2005 contains no general agricultural-supply category other than LMV-5 (private tube well/pumping set for irrigation) and HV-4 (lift irrigation); a poultry farm, being a commercial activity, is properly billed in LMV-2 (non-domestic). ¶ 1

HOLDING-UNITS

INTERPLAY · UP-2005::LMV-2

tariff-category-poultry-farm

HOLDING

Where the U.P. Electricity Supply Code, 2005 classifies consumers into specified categories and contains no general agricultural-supply category other than LMV-5 (private tube well/pumping set for irrigation) and HV-4 (lift irrigation), a poultry-farm consumer billed in LMV-2 (non-domestic light, fan and power) cannot obtain agricultural or non-commercial rates by invoking the U.P. Revenue Code, 2006 definition of 'agriculture', which includes poultry farming; running a poultry farm is otherwise a commercial activity, and the writ seeking recasting of the bill is dismissed. ¶ 1

PRINCIPLE TAGS

tariff-category-not-imported-from-revenue-code

The Court refused to recast LMV-2 poultry-farm billing as agricultural supply by importing the Revenue Code definition of agriculture, holding that the Supply Code's specified categories (LMV-5 and HV-4 for irrigation only) control the rate. ¶ 1